

## 25STCV14559 25STCV14559

County: los-angeles

Division: Civil Law and Motion

Department: 512

Hearing date: 2026-09-15

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Case Number: 25STCV14559 Hearing Date: September 15, 2026 Dept: 512

HEARING DATE: Tues., September 15, 2026 JUDGE /DEPT: Mkrtchyan/512

CASE NAME: Gonzalez

v. General Motors LLC COMPL. FILED: 05-19-25

CASE NUMBER: 25STCV14559 FAC

FILED: 02-13-26

NOTICE:

OK

PROCEEDINGS: MOTION

FOR ATTORNEY'S FEES AND COSTS

MOVING PARTY: Plaintiff

Steven Gonzalez

RESP. PARTY: None

MOTION FOR ATTORNEY'S FEES

(Civ. Code, § 1794)

TENTATIVE RULING:

Plaintiff Steven Gonzalez's Motion to

Determine the Amount of Reasonable Attorney's Fees, Costs, and Expenses to be

Paid by Defendant is GRANTED IN PART AND DENIED IN PART.

The Motion

is GRANTED as to the request for attorney's fees in the reduced total amount of \$26,034.50.

The Motion is DENIED as to the request for costs.

Plaintiff is to file a Notice of Settlement within 5 days of this order.

Parties are reminded to file a Notice of Settlement once the case has settled.

Considering

the settlement, the Court advances the Final Status Conference and Trial to this date and VACATES the hearings.

The

Court schedules an Order to Show Cause re: Dismissal for October 21, 2026 at 8:30 a.m. in Department 512.

Moving party is ordered to give notice.

SERVICE:

☒ Proof of Service Timely

Filed (CRC, rule 3.1300) OK

☒ Correct Address (CCP §§

1013, 1013a) OK

☒ 16/21 Court Days Lapsed

(CCP §§ 12c, 1005(b)) OK

OPPOSITION: None filed as of

September 11, 2026 ☐ Late ☒

None

REPLY: None filed as

of September 11, 2026 ☐

Late ☒ None

ANALYSIS:

I.

## Background

On May 19, 2025,  
Plaintiff Steven Gonzalez ("Plaintiff") filed the instant action against  
Defendant General Motors LLC ("Defendant") and Does 1-10, alleging multiple  
violations under the Song-Beverly Consumer Warranty Act and Violation of  
Business and Professions Code.

On February 13,  
2026, Plaintiff filed a First Amended Complaint ("FAC") against Defendant and  
Does 1-10, alleging violations of the Magnuson-Moss Warranty Act, Breach of  
Express and Implied Warranties, Violation of the Song-Beverly Consumer Warranty  
Act, and Violation of the Business and Professions Code.

On March 18,  
2026, Defendant filed an Answer.

On  
July 8, 2026, Plaintiff filed the instant Motion to Determine the Amount of Reasonable Attorney's Fees, Costs, and  
Expenses to be Paid by Defendant (the "Motion").

No  
Opposition has been filed.

II.

## Legal Standard

As  
to Song-Beverly warranty claims, prevailing buyers are entitled to recover  
reasonable attorney fees and have the burden to show that the fees incurred  
were reasonably necessary to the conduct of the litigation and were reasonable  
in amounts. (*Doppes v. Bentley Motors, Inc.* (2009) 174 Cal.App.4th 967, 997-998.)

"[V]erified  
time statements of the attorneys, as officers of the court, are entitled to  
credence in the absence of a clear indication the records are erroneous." (*Horsford v. Board of Trustees of California  
State University* (2005) 132

Cal.App.4th 359, 396.)

"[I]t is inappropriate and an abuse of a trial court's discretion to tie an attorney fee award to the amount of the prevailing buyer/plaintiff's damages or recovery in a Song-Beverly Act action, or pursuant to another consumer protection statute with a mandatory fee-shifting provision." (Warren v. Kia Motors Am., Inc. (2018) 30 Cal.App.5th 24, 37.)

Under the Song-Beverly Act, "the lodestar adjustment method of calculating attorney fees is appropriate," and an award of attorney's fees is "limited to actual hours both expended and determined by the court to be reasonably incurred." (Reynolds v. Ford Motor Co. (2020) 47 Cal.App.5th 1105, 1112-1117.)

The Court's objective is to award attorneys' fee at the fair market value based on the particular action. (See Ketchum v. Moses (2001) 24 Cal.4th 1122, 1132.) "The reasonable hourly rate is that prevailing in the community for similar work." (PLCM Group v. Drexler (2000) 22 Cal.4th 1084, 1095.) " '[T]he fee setting inquiry in California ordinarily begins with the 'lodestar,' i.e., the number of hours reasonably expended multiplied by the reasonable hourly rate.' " (Ketchum, supra, 24 Cal.4th at p. 1134.) The lodestar method is based on several factors, as relevant to each particular case: "(1) the novelty and difficulty of the questions involved, (2) the skill displayed in presenting them, (3) the extent to which the nature of the litigation precluded other employment by the attorneys, (4) the contingent nature of the fee award." (Id., at p. 1132.) "The 'experienced trial judge is the best judge of the value of professional services rendered in his court, and while his judgment is of course subject to review, it will not be disturbed unless the appellate court is convinced that it is clearly wrong.' " (Ibid.) A negative multiplier is appropriate when duplicative work is performed. (Thayer v. Wells Fargo Bank, N.A. (2001) 92 Cal.App.4th 819, 834.)

For purposes of determining a reasonable hourly rate for attorneys' fees, the "relevant 'community' is generally based on where the services are rendered, i.e., where the court is located." (Tidrick v. FCA US LLC (2025) 112 Cal.App.5th 1147, 1157; see also Syers Properties III, Inc. v. Rankin (2014) 226 Cal.App.4th 691, 702.)

Courts typically

find that paralegal fees are recoverable as a component of attorney fees. (See *Del Biaggio v. Bansen* (2026) 121 Cal.App.5th 831, 840.)

III.

Discussion

A. Entitlement to Fees and Costs

Code of Civil Procedure section 1794,

subdivision (d) states: “If the buyer prevails in an action under this section, the buyer shall be allowed by the court to recover as part of the judgment a sum equal to the aggregate amount of costs and expenses, including attorney’s fees based on actual time expended, determined by the court to have been reasonably incurred by the buyer in connection with the commencement and prosecution of such action.”

Here, Plaintiff provides a copy of the

Settlement Agreement between the parties that states, in pertinent part, as follows:

Plaintiff Steven Gonzalez has agreed

to accept the total sum of \$5,000.00 exclusive of all attorney’s fees, costs, and expenses to resolve the Lawsuit and all claims concerning the Vehicle (the “Settlement Payment”). GM will issue a check, in that amount, made payable to “Steven Gonzalez and LAW OFFICES OF JON JACOBS,” which will be delivered to LAW OFFICES OF JON JACOBS, within 45 days after GM’s counsel has received a copy of this Agreement signed by Plaintiff. Reasonable attorneys’ fees, costs, and expenses pursuant to subdivision (d) of Section 1794 of the Civil Code shall be determined by the court by way of a noticed motion. Defendant agrees Plaintiff is the prevailing party for purposes of said fee motion.

(Motion, David Decl., ¶¶ 4-5, Exh. 1, ¶ 1, emphasis added.)

Given the express language of the

Settlement Agreement and Civil Code section 1794, subdivision (d), the Court finds Plaintiff is the prevailing party in this action for purposes of attorney’s fees and costs.

Additionally, the Court finds Plaintiff timely moved for attorney's fees within the allowable time from the date of settlement in this matter. (See *Hatlevig v. General Motors LLC* (2026) 118 Cal.App.5th 644, 648-649.)

#### B. Amount of Fees

Plaintiff moves for an award of \$29,624.50 in attorney's fees and \$1,342.17 in costs. (Motion, p. 7.) Plaintiff states the requested attorney's fees reflect 26.1 hours in attorney time billed at a rate of \$795.00 per hour and 19.6 hours in paralegal time billed at a rate of \$250.00 per hour, plus five hours of attorney time for the instant Motion and "wrap up" fees. (See Motion, pp. 4-5, David Decl., ¶¶ 3-19.)

Here, Plaintiff submits a declaration from Plaintiff's counsel's managing partner, Chad A. David, as well as copies of the billing records for this matter. (See Motion, David Decl., Exh. 9.) The billing records demonstrate attorney time in this matter was spent on itemized tasks such as drafting pleadings, attending mediation, talking to client, attending court hearings, conducting legal research, engaging in settlement matters, and preparing the instant Motion. (See Motion, David Decl., Exh. 9.) The billing records also demonstrate paralegal time in this matter was spent on itemized tasks such as emails, filing, reserving court hearings, invoicing, taking and updating notes, reviewing court docket, and completing various administrative tasks. (See Motion, David Decl., Exh. 9.)

Upon review of the Motion and submitted evidence, the Court finds the hourly rates sought by Plaintiff to be reasonable and adequately supported. (See Motion, David Decl., Exh. 9.)

Given the length and nature of the action, that mediation was held in the action, and the nature of the fee award, the Court finds most of the time and hours incurred by Plaintiff's counsel to be reasonable under a lodestar method. However, many of the entries accounted for paralegal work are secretarial in nature. For example, on 7/6/2026, an entry states "Drop off UPS shipper (settlement check) to UPS store, billing for .2. This is a secretarial task. Another example, an entry on 7/6/2026, states "review & enter receipt for UPS 2nd Day Air to Steven Gonzalez." This is a secretarial task. Another example, on 7/6/2026, "called and spoke

with Steven. He confirmed the spelling of his full name and confirmed the address we have is current.” These are not paralegal tasks that would warrant billing rate of \$250. Thus, the billing will be reduced to reflect these clerical/secretarial tasks in the amount of \$2,000.

Furthermore, the Court does not find that all of the anticipated attorney’s fees for the instant Motion were incurred given there was no opposition or reply filed. (See Motion, David Decl., ¶ 19.) The Court thus finds three hours at \$795.00 per hour reasonable for the instant Motion.

Thus, the Motion is GRANTED as to attorney’s fees in the reduced total amount of \$26,034.50, reflecting a lodestar calculation of 29.1 hours billed at \$795.00 per hour and 11.6 hours billed at \$250.00 per hour.

As to the Motion’s request for costs, the Court does not find that a memorandum of costs was separately filed in this matter. (Benson v. S. California Auto Sales, Inc. (2015) 239 Cal.App.4th 1198, 1209, fn. 8 [“Benson did not make a motion for costs under Code of Civil Procedure sections 1032 and 1033.5, which,... required filing a stand-alone memorandum of costs to begin the process. (See Cal. Rules of Court, rules 3.1700 and 3.1702)”].)

As such, the Court may not award costs at this time. (Ibid.) Thus, the Motion is DENIED as to costs.

IV.

Conclusion  
& Order

For the foregoing reasons, Plaintiff Steven Gonzalez’s Motion to Determine the Amount of Reasonable Attorney’s Fees, Costs, and Expenses to be Paid by Defendant is GRANTED IN PART AND DENIED IN PART.

The Motion is GRANTED as to the request for attorney’s fees in the reduced total amount of \$26,034.50.

The Motion is DENIED as to the request

for costs.

Plaintiff is to file a Notice of Settlement within 5 days of this order. Parties are reminded to file a Notice of Settlement once the case has settled.

Considering the settlement, the Court advances the Final Status Conference and Trial to this date and VACATES the hearings.

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